

FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS
CONFERENCE, AMERICAN
TRUCKING ASSOCIATIONS, INC.,

Complainant,

v.

OCEAN CARRIER EQUIPMENT
MANAGEMENT ASSOCIATION, INC.,
ET AL.,

Respondents.

Docket No. 20-14

Served: May 22, 2026

BY THE COMMISSION: Laura DiBELLA, *Chairman*, Rebecca
F. DYE, Daniel B. MAFFEI, Max M. VEKICH, *Commissioners*.

Order Affirming Remand Decision **Dismissing Remaining Claims**

Complainant Intermodal Motor Carriers Conference, American Trucking Associations, Inc. (Intermodal) filed this action to obtain a cease-and-desist order halting restrictive rules and practices imposed by the respondent ocean common carriers and their associations, the Ocean Carrier Equipment Management Association (OCEMA) and Consolidated Chassis Management (CCM). In an order issued in February 2024, the Federal Maritime

Commission (FMC or Commission) found Respondents' rules for merchant haulage restricting truckers to chassis providers designated by the ocean common carrier and using merchant haulage volume to obtain better carrier haulage rates for themselves violates 46 U.S.C. § 41102(c). It ordered Respondents to immediately cease those practices in four test case regions: Los Angeles/Long Beach, Chicago, Memphis and Savannah. The Commission then remanded the case to the Chief Administrative Law Judge (ALJ) to decide the remaining claims challenging Respondents' chassis-provisioning rules and practices in the rest of the United States.

The ALJ dismissed all remanded claims as moot based on a combination of changes Respondents initiated after the Commission issued the cease-and-desist order and altered conditions in the chassis-provisioning market overall. The ALJ found that CCM changed its rules to eliminate the provisions the ocean common carriers previously relied upon to restrict chassis choice by truckers and shippers and the carriers changed their contracts with Intermodal Equipment Providers (IEPs) and decoupled merchant haulage volume from carrier haulage rates. The ALJ also relied upon market changes overall, including the dissolution of all but one CCM-managed chassis pool. Collectively, these changes led the ALJ to conclude that the conditions Complainant sued to enjoin essentially no longer exist. Since there is no claim for reparations, the ALJ found that there is no further or additional meaningful relief the Commission can award on the remanded claims.

The ALJ's order dismissing the remanded claims is now before the Commission. For the reasons discussed in this Order, the ALJ's remand order is affirmed in its entirety. Complainant's request to add prior notice requirements and to expand the geographic scope of the cease-and-desist order is denied, and all remanded claims are dismissed as moot.

I. BACKGROUND

Complainant represents the interests of motor carriers (truckers) hired to transport containerized cargo between U.S. ports and inland facilities and brought this action to challenge rules adopted and enforced by OCEMA, CCM, and their ocean common carrier members that restrict shippers and truckers to the carriers' designated chassis provider. OCEMA members mostly transport containerized cargo, and their services include arranging intermodal transportation between ports and inland locations by motor carrier or railroad.¹ CCM was organized to form and operate local and regional chassis pools.²

Most of the individual ocean common carriers named as respondents are members of OCEMA and CCM: CMA CGM S.A.; COSCO Shipping Lines Co. Ltd.; Evergreen Line Joint Service Agreement³; Hapag-Lloyd AG; HMM Co. Ltd.; Maersk A/S; MSC Mediterranean Shipping Company S.A.; Ocean Network Express Pte. Ltd.; and Zim Integrated Shipping Services. The two exceptions are Wan Hai Lines Ltd. which is not a CCM member, and Yang Ming Marine Transport Corp., which no longer belongs to OCEMA. When Complainant filed this action in 2020, three IEPs supplied the equipment for most CCM pools: Direct ChassisLink, Inc.; Flexi-Van Leasing, LLC; and Interpool, Inc. d/b/a TRAC Intermodal.

Complainant challenged rules established by CCM governing chassis pool operations and the billing structure which carriers relied upon to designate exclusive and preferred (default) chassis providers and require truckers and shippers to use that provider for both merchant and carrier haulage. It also challenged ocean common carriers' contracts with IEPs granting them more favorable rates for carrier haulage based on their merchant haulage volume. Complainant sought a cease-and-desist order to stop

¹ See FMC Agreement No. 011284; <http://www.ocema.org/about.html>.

² See FMC Agreement No. 011962.

³ See FMC Agreement No. 011982.

Respondents from continuing to establish and apply the rules and contract provisions to unreasonably restrict truckers' and shippers' choice of chassis providers in violation of 46 U.S.C. § 41102(c).

The parties agreed to litigate the claims in stages with the first stage focused on the existence and impact of Respondents' alleged restrictions in four geographic regions serving the ports at Los Angeles/Long Beach and Savannah and inland facilities near Memphis and Chicago. Following discovery and motions practice, the ALJ issued an Initial Decision Partially Granting Summary Decision that found the challenged rules and practices restricting truckers and shippers to the ocean common carrier's designated chassis provider and carriers' use of those restrictions to obtain better rates for themselves were unreasonable practices that violate section 41102(c). The ALJ ordered Respondents to cease engaging in all such practices in the four test case regions. *Intermodal Motor Carriers Conference v. OCEMA (Intermodal I)*, FMC Docket No. 20-14, 2023 WL 1963455 (ALJ Feb. 6, 2023).

The Commission affirmed the Initial Decision in its entirety, directed Respondents to immediately cease engaging in the unlawful practices in the four test case regions, and remanded the case to Judge Wirth to dispose of the remaining claims. *Intermodal Motor Carriers Conference v. OCEMA (Intermodal II)*, FMC Docket No. 20-14, 2024 WL 641501 (FMC Feb. 13, 2024). Respondents petitioned the Commission to reconsider, but the Commission determined that the petition would not become ripe until all remaining claims were decided. *Intermodal Motor Carriers Conference v. OCEMA*, FMC Docket No. 20-14, "Order Holding in Abeyance Petitions for Reconsiderations and Granting Leave to File Amicus Brief" (FMC June 5, 2024); *see* 46 C.F.R. § 502.261.⁴

After the Commission issued the cease-and-desist order in February 2024, it directed the Commission's Bureau of

⁴ Respondents' petition for reconsideration will be addressed in a separate Commission order.

Enforcement, Investigations, and Compliance (BEIC) to investigate reports that Respondents had not altered their rules and practices and continued to engage in the practices the Commission found were unlawful. BEIC's investigation is docketed as a separate matter. *In the Matter of Inquiry Regarding Compliance with the Cease and Desist Order in Docket No. 20-14*, FMC SI No. 24-02.

On remand, the parties submitted a Joint Status Report⁵ identifying claims yet to be resolved and addressing current practices and chassis market conditions. Complainant acknowledged CCM's rule change but argued that it was still entitled to additional and expanded relief. It asked the ALJ to expand the existing cease-and-desist order to cover the rest of the United States and direct CCM to provide 60 days advance notice of future rule changes resurrecting provisions that allowed carriers to restrict chassis choice. Complainant asserted that this additional and expanded relief could be awarded on the existing case record without additional discovery.

Respondents opposed Complainant's request for additional cease-and-desist orders and argued that the remaining claims were moot given their revised rules and practices and intervening changes in the chassis market overall. They also disputed Complainant's assertion that the current record supports further relief without any additional discovery. Respondents asserted that the test case regions were never intended to be a representative sample or serve as a proxy for conditions across the United States and pointed out that they had not waived their right to discovery on conditions outside the test case regions. Respondents further argued that diverse rules and conditions around the United States made it impossible to generalize or infer that the same conditions or restrictions exist elsewhere with the same effect or impact.

In the remand decision, the ALJ summarized the points that parties agreed on which were: (1) allegations about practices at the

⁵ Joint Status Report, filed Aug. 23, 2024.

LA/Long Beach Pool of Pools would be more effectively addressed through BEIC's investigation given that pool's unique structure; (2) Complainant does not seek reparations; and (3) the only further relief Complainant seeks is an expanded cease-and-desist order. *Intermodal Motor Carriers Conference v. OCEMA (Intermodal III)*, FMC Docket No. 20-14, 2024 WL 5119297, at *6-7 (ALJ Dec. 10, 2024).

The ALJ denied both of Complainant's requests for additional relief and found all remaining claims moot based on the intervening changes made by Respondents and, more broadly, on evolving conditions in the chassis market overall including CCM's reduced operations. *Id.* at *13. The ALJ noted that the only CCM-managed chassis pool still operating is the South Atlantic Multiport Chassis Pool (SAMCP)⁶ which operates under CCM's revised rules. *Id.* at *2,*5-6. The ALJ concluded essentially that Complainant has already gained the relief it originally sought through changes Respondents made in response to the cease-and-desist order and evolving chassis market conditions overall. *Id.* at *5, *13. In particular, the ALJ noted that CCM modified its operating rules effective May 2024 to eliminate the provisions that ocean common carriers used to restrict chassis choice on merchant haulage and that the ocean common carriers' contracts with IEPs unlawfully tying merchant haulage volume to carrier haulage rates had by that time likely expired or been renegotiated. *Id.* at *8-12. The ALJ concluded that these combined changes resolved Complainant's claims, and there was no additional meaningful relief the Commission could award in the form of an expanded cease-and-desist order. *Id.* at *13.

The ALJ also found that the current record does not support ordering additional discovery to document current conditions and chassis provisioning rules and practices in the rest of the United States. *Id.* at *9. The ALJ relied on findings made by the Transportation Research Board (TRB) of the National Academies of Sciences, Engineering, and Medicine in its study on best practices

⁶ See FMC Agreement No. 201391.

for chassis usage. *Id.* at *2. The Commission partnered with the TRB under Ocean Shipping Reform Act of 2022 to study the “best practices for on-terminal or near-terminal chassis pools servicing marine terminal operators, motor carriers and other stakeholders [to] optimize supply chain efficiency and effectiveness.” *See* Public Law 117-146, 136 Stat. 1272 (June 16, 2022). Based on its analysis of the evidence gathered from multiple sources, the TRB concluded that chassis markets across the United States operate under such diverse conditions and differing practices that it is not practical or feasible to accurately generalize about those conditions or frame universally applicable standards.⁷ The ALJ also cited the increased reliance on trucker-owned or trucker-supplied chassis in some locations as adding to the lack of uniformity and complexity required to conduct discovery into current chassis practices and market conditions across the entire United States. *Intermodal III*, 2024 WL 5119297, at *11. The ALJ’s remand decision is now before the Commission.

II. DISCUSSION

A. Claims Dismissed as Moot

The Commission has de novo review authority over the ALJ’s dismissal order and can exercise “all the powers” it would have had in ruling on the matter initially. 46 C.F.R. § 502.227(a)(6). Given that the Commission’s review is de novo, we address the arguments that Complainant made before the ALJ, which she found unpersuasive, and Respondents’ opposing contentions.

1. Mootness Doctrine

The Commission’s authority to adjudicate Shipping Act claims is grounded in 46 U.S.C. § 41301(c), which provides that

⁷ *See generally* 46 C.F.R. § 502.226(b) (setting forth the admissibility of public documents, such as official reports, issued by any of the executive departments or administrative agencies of the Federal Government (including Government-owned corporations) reasonably available to the public).

“[i]f the complaint is not satisfied, the Commission shall investigate the complaint in an appropriate manner and make an appropriate order.” Unlike the federal courts, the Commission’s authority to adjudicate claims is not limited by the U.S. Constitution to an actual case or controversy. *See Larsen v. U.S. Navy*, 525 F.3d 1, 4 (D.C. Cir. 2008) (addressing mootness doctrine in the federal courts). However, historically, the Commission has declined to adjudicate claims and dismissed them as “moot” if the issues initially presented no longer exist and relief potentially available will not change the parties’ current circumstances. *See Distribution Services Ltd. v. Asia North America Eastbound Rate Agreement*, FMC Docket No. 90-02, 1990 WL 454990 at *1, *3 (ALJ Nov. 2, 1990) (admin. final Dec. 7, 1990). Changed circumstances over the course of the litigation can result in claims becoming moot if the Commission can no longer award meaningful relief to the parties under the claims asserted. *Pet. of Direct Chassislink, Inc., Flexi-Van Leasing, Inc., & Trac Intermodal For an Order to Show Cause*, FMC Petition No. P2-16, 2017 WL 2437501, at *1 (FMC June 1, 2017); *see also Pub. Citizen, Inc. v. FERC*, 92 F.4th 1124, 1127 (D.C. Cir. 2024).

The Commission dismisses claims as moot when it becomes apparent that the wrongs initially alleged no longer exist and are not likely to recur, making it impossible or impractical for the Commission to award meaningful relief. In a situation similar to this case, the Commission dismissed as moot claims challenging service contract terms when the respondent abandoned the disputed terms and agreed not to reinstate them. *See Distribution Services*, 1990 WL 454990 at *1, *3. That is similar to CCM’s revision of its rules and the ocean common carriers’ removal of merchant haulage/carrier haulage ties in their contracts with the IEPs. More recently, the Commission dismissed as moot a contested terminal service fee when the respondent removed it before the scheduled effective date. *Direct Chassislink, Inc.*, 2017 WL 2437501, at *1. And similarly, the Commission dismissed a charge complaint as moot when the carrier fully refunded the disputed charge. *Mediterranean Shipping Company – Investigation for Compliance With §§ 41104(a) and 41102 of Demurrage or Detention Charges*

Under the Charge Complaint Procedures of 46 U.S.C. § 41310, FMC Docket No. CC-001, 7 F.M.C.2d 14, 20 (FMC Sept. 29, 2023).

Two exceptions to the mootness doctrine justify retaining jurisdiction over claims that would otherwise be dismissed as moot. Claims that are “capable of repetition, yet evading review” are exempted. *Beethoven.com LLC v. Librarian of Congress*, 394 F.3d 939, 950 (D.C. Cir. 2005). This exception applies to actions that do not last long enough to be fully litigated before they expire or otherwise cease to exist and are likely to be repeated against the same party in the future. *Public Utilities Comm’n of Cal. v. FERC*, 236 F.3d 708, 714-15 (D.C. Cir. 2001). If repetition or future action is possible only in theory or merely probable, that is not sufficient. *Id.*; *Murphy v. Hunt*, 455 U.S. 478, 482 (1982). The second exception covers situations where the defendant or respondent voluntarily stops engaging in the challenged conduct. *Pub. Citizen*, 92 F.4th at 1128. Respondents seeking a dismissal based on a voluntary cessation of the challenged conduct must show that there is no reasonable expectation that the alleged violation will recur and that interim relief or events have eradicated the effects of the alleged violation. *Lake Pilots Ass’n v. U.S. Coast Guard*, 257 F. Supp. 2d 148, 156-57 (D.D.C. 2003). This exception prevents parties from evading judicial review or defeating a judgment by temporarily pausing the challenged conduct only to resume it when the case against them is dismissed. *See Unified Sch. Dist. No. 259 v. Disability Rights Ctr. of Kan.*, 491 F.3d 1143, 1149 (10th Cir. 2007).

2. Additional Relief Sought on Remand

Two claims for additional relief were before the ALJ—Complainant’s request to expand the cease-and-desist order to cover Respondents’ practices at ports and inland facilities in the rest of the United States (outside the four test case regions) and its request to require 60 days advance notice of future rule changes affecting chassis choice. *Intermodal III*, 2024 WL 5119297, at *7. The ALJ found both requests were mooted by changes Respondents made to comply with the cease-and-desist order and evolving dynamics in

the U.S. chassis market overall. *Id.* at *13. The ALJ concluded that these changes essentially eliminated the restrictions that Complainant sued to remove and made Respondents' resumption of the unlawful practices unlikely. *See id.* Key changes that the ALJ cited included the dissolution of all but one CCM-managed chassis pool and ocean carrier/IEP contracts that have since expired or been renegotiated. *Id.* at *2, *13.

CCM modified the two rules in its Operations Manual that the ocean common carriers had previously relied on to justify designating the chassis provider that truckers had to use for merchant haulage moves unless the ocean common carrier (and sometimes the IEP as well) consented to a change. *Id.* at *7-10. Ocean carriers benefited financially from this arrangement because their contracts with IEPs tied merchant haulage volume to carrier haulage rates. *Id.* at *10-12. CCM's revisions to Rules 5.5 and 5.7 became effective on May 1, 2024. *Id.* at *7. Under the modified rules, truckers and shippers can unilaterally choose a different chassis provider without the ocean carrier's or IEP's consent. *See id.* This rule change provided Complainant with the relief it sued to obtain but it contends that CCM acted voluntarily and could easily reinstate the prior rules. *Id.* at *5, *10. As insurance against that possibility, Complainant sought an order requiring Respondents to provide 60 days advance notice of future proposed rule changes reinstating or allowing carrier restrictions. *Id.* The ALJ found that CCM's rule change was not voluntary and there were not sufficient grounds for requiring advance notice of future rule changes. *Id.* at *9-10.

It is clear from the timing and nature of CCM's actions that the rule change was not voluntary but was a direct response to the Commission's cease-and-desist order. *See id.* at *7, *9. Although CCM did not make the rule change effective immediately, as the Commission ordered, the revised rules became effective on May 1, 2024, approximately three months later. *See id.* at *7. The record does not support Complainant's contention that CCM is likely to undo the rule change to restore prior limitations or can easily do so

without repercussions. At one time, CCM chassis pools served most major U.S. transportation hubs and included the: (1) Chicago & Ohio Valley Consolidated Chassis Pool LLC; (2) Denver Consolidated Chassis Pool LLC; (3) Gulf Consolidated Chassis Pool LLC; (4) Mid-South Consolidated Chassis Pool LLC; (4) Mid-West Consolidated Chassis Pool LLC; and (5) South Atlantic Chassis Pool LLC (South Atlantic Chassis Pool). *See* <http://www.ocema.org/ccm.html>.

Only one CCM-managed chassis pool is still operating. *See generally Intermodal III*, 2024 WL 5119297, at *6. The SAMCP is the successor to the South Atlantic Chassis Pool and it is operating under the CCM rules revised to comply with the Commission's cease-and-desist order. SAMCP operates under terms spelled out in FMC Agreement No. 20139, which became effective on November 26, 2022. Its chassis pools are located at coastal ports in Georgia, North Carolina, and Jacksonville, Florida and inland facilities linked to those ports located in those states, as well as in Alabama, Mississippi, South Carolina, and Tennessee. Parties to the SAMCP Agreement include CCM, OCEMA and its member carriers, and state ports in North Carolina, Georgia, and Jacksonville, Florida. SAMCP Agreement, Art. 3. SAMCP pools function under a single provider model as fully interoperable "grey" pools, meaning that chassis can be picked up or dropped off at multiple locations. *Id.* The chassis pools are owned by the South Atlantic Chassis Pool (SACP) and managed by CCM, which also supplies the equipment. *Id.*, Art. 2. The SAMCP has exclusive rights to operate and store equipment onsite at participating terminals, but pool operating rules do not require truckers to use ocean common carriers' designated chassis provider(s). *Id.*

3. Impact of Changed Conditions

Complainant brought this action to halt practices established by Respondents that restricted truckers' and shippers' ability to deal with the chassis provider of their choice, particularly for merchant haulage and to eliminate contractual incentives for ocean common

carriers to dictate the chassis provider for merchant haulage moves. The Commission addressed the alleged restrictions in four test case regions, found that they violate the section 41102(c) prohibition against unreasonable practices, and ordered Respondents to cease engaging in those practices in the four test case regions.

While this action was pending, CCM's sphere of influence over chassis pools nationwide changed. It no longer has the ability it once had to dictate operating rules or directly control chassis pool operations that serve multiple U.S. regions. Its ability to directly control or influence those operations is now limited to the southeastern U.S., and its operations there currently function under rules that eliminated provisions carriers used to dictate chassis choice for merchant haulage. Further, as the ALJ found, ocean common carriers would now be operating under revised or renegotiated contracts with IEPs and there is nothing Complainant pointed to suggesting that their current contracts continue to give carriers more favorable carrier haulage rates for themselves based on higher merchant haulage volumes. *See Intermodal III*, 2024 WL 5119297, at *2, *11.

Collectively, these changes take away the Respondents-imposed restrictions that Complainant brought this action to correct. Complainant did not point to evidence to the contrary in the remand proceedings before the ALJ. *See id.* at *1-2, *11. Complainant did not identify any current OCEMA or CCM practices at specific ports or inland locations that allegedly still exist in violation of the cease-and-desist order. *Id.* at *4-5. It acknowledged that OCEMA-owned and CCM-managed interoperable pools around the country are in the process of "permanently winding down their operations." *Id.* at *5. Complainant also acknowledged that the revised CCM rules now allow "unilateral reassignment" to a different chassis provider and that Respondents no longer rely on those rules to impose their choice on truckers and shippers for merchant haulage. *See id.*

In sum, Respondents' changed rules and practices and CCM's reduced operations have removed the barriers to chassis

choice imposed by Respondents' unreasonable policies and practices in violation of section 41102(c).

4. "Voluntary Cessation" and Basis for Expanded Relief

Complainant argued before the ALJ that the "voluntary cessation" exception to the mootness doctrine applies because Respondents made the changes voluntarily and could easily reverse them. *Intermodal III*, 2024 WL 5119297, at *5, *9. There is no credible basis for classifying Respondents' changes as voluntary. Respondents were clearly responding to the Commission order. The "voluntary cessation" exception is meant to prevent respondents from voluntarily altering their conduct as a subterfuge to get the claims dismissed only to then resume the same practices. *See id.* at *9. There is no evidence to suggest that Respondents' changed practices were voluntary or a ruse to prompt the Commission to dismiss the claims. *See id.*

As insurance against the possibility of Respondents reinstating their prior rules and practices, Complainant also sought an order requiring advance notice of future rule changes that Respondents might seize upon to resume prior restrictive practices. Changes in the chassis market overall make reinstatement unlikely given that only one CCM-managed chassis pool is still operating. *Id.* at *5. Further, as the ALJ pointed out, the Commission decision finding carrier-imposed restrictions on chassis choice for merchant haulage still stands and that analysis will apply to future attempts to restrict chassis choice in violation of the section 41102(c) prohibition against unreasonable practices or other Shipping Act prohibitions. *See id.* at *13.

Complainant also sought an order expanding coverage of the cease-and-desist order to the rest of the U.S. and argued that relief could be provided on the current record. It asserted essentially that the Commission could infer that Respondents were still enforcing the unlawful restrictions and illegally tying merchant haulage

volume to carrier haulage rates elsewhere in the U.S. and order them to cease and desist. *Id.* at *12.

The record does not support granting this additional relief. Discovery and motions practice were limited to the test case regions which cover two coastal ports and areas around two inland transportation hubs. *See id.* at *10-11. Respondents did not have the opportunity to conduct discovery and compile a complete administrative record about their practices and restrictions (or the lack thereof) at other ports and inland terminals. *See id.* There was no agreement that the test case regions would serve as a proxy for the rest of the U.S. and no waiver of the right to conduct further discovery later. *See id.* at *5, *10-12. The case was divided into segments with the test case regions going first, but Respondents did not agree that the decision about those claims would determine the outcome nationwide. Further, as the TRB study confirmed, chassis markets and conditions around the U.S. are not uniform or one monolithic whole but vary considerably in different locales. *See id.* at *2. And finally, Complainant did not point to any grounds for inferring that Respondents changed their rules and practices only in the test case regions but are still imposing the same unlawful restrictions or benefiting from the unlawful tying arrangement in other U.S. locations.

Based on the record in this case, the Commission does not have a factual basis for expanding the cease-and-desist orders granted in that order to the rest of the United States or requiring advance notice of future rule changes.

III. ORDER

The ALJ's order dismissing all remanded claims as moot and denying Complainant's request for expanded and additional cease-and-desist orders is affirmed. For all the foregoing reasons, the Commission hereby:

- (1) **AFFIRMS** the Remand Decision Dismissing Remaining Claims issued by the ALJ; and
- (2) **DENIES** Complainant's request for additional injunctive relief.

By the Commission.

David Eng
Secretary